



OSHKOSH CHAMBER OF COMMERCE

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FEDERAL MARITIME COMMISSION

December 16, 2011

Ms. Karen V. Gregory
Secretary
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573-0001

Subject: Docket No. 11-19, *U.S. Containerized Cargo Flows – Response to NOI*

Dear Madam Secretary:

On behalf of the Oshkosh Chamber of Commerce, please accept these comments in response to the Federal Maritime Commission's Notice of Inquiry on factors that may cause or contribute to the shift of cargo destined for the U.S. inland from U.S. to Canadian and Mexican seaports.

The Oshkosh Chamber of Commerce is a member business association consisting of over 1000 businesses representing the industrial and commercial sectors of the Oshkosh area. These businesses employ over 28,000 individuals. As a business association, our mission is to represent our membership's interests on various issues affecting the economic environment, with an overall aim to improve the business climate.

Numerous Wisconsin companies and thousands of Wisconsin jobs depend upon cost-effective rail access to U.S. and Canadian ports on the West Coast, not only to deliver inputs for their production, but also to reach their global export markets. The selection of ports and shipping lanes is extremely competitive, and after careful consideration, many Wisconsin companies choose to ship with CN by way of the Canadian ports. The Chippewa Falls Intermodal Terminal, which opened this year, is an example of how important seamless and cost-effective access to Canadian ports is to our State.

There may indeed be legitimate concerns as to how the U.S. Harbor Maintenance Tax is collected and distributed, among the various U.S. seaports, but this is a domestic U.S. issue, not one that involves Canada. The FMC's allegations of potential unfair competition from Canadian seaports are unwarranted, and should the Commission consider or recommend unjustified protectionist measures, such measures would lead to unnecessarily higher costs at the border and would have a devastating impact on the Wisconsin economy and jobs.

A Five Star Accredited Chamber of Commerce

Canada is Wisconsin's largest trade partner. Wisconsin businesses sell more to Canada than it does to its next six export markets combined. Nearly a third of all Wisconsin foreign-bound goods are sold to Canada and that figure does not include Wisconsin produced goods that pass through Canadian ports destined for other foreign markets. In addition, there are an estimated 156,500 jobs in Wisconsin that depend on Canada-Wisconsin trade. Wisconsin cannot afford to have the FMC make recommendations that could drive up costs for Wisconsin businesses and threaten jobs.

Trade between the United States and Canada is well documented and is interdependent. The ability to choose from among a variety of North American ports for imports and exports is essential to the success of the businesses we represent.

Thank you for the opportunity to comment on this issue. Please include this letter in the public docket for this proceeding.

Sincerely,


John A. Casper
President & CEO